IMPARTIAL ANALYSIS OF MEASURE "W"

Overview. Measure W is a referendum regarding City of Banning Ordinance No. 1620 which was adopted by the City Council on April 14, 2026, approving a Development Agreement between the City and NP Banning Industrial, LLC. The Measure was placed on the ballot by referendum signed by the requisite number of voters.

Development Agreement. The Ordinance vests development rights subject to the terms and conditions of the Agreement and allows the Owner to develop a master planned project including industrial, commercial, and public facilities, parkland and open space, with on-and off-site improvements ("Project") on the Owner's real property located within the City and County in exchange for various public benefits.

Under the terms of the Agreement and in exchange for the vested development rights related to the Project, the Agreement requires the Owner to provide the following benefits subject to the specified timing and terms of the Development Agreement:

1. Pay the City the lesser of $8,000,000 or $1.44 per square foot of entitled warehouse/logistics/industrial building square footage.
2. Construct, install, or fund the construction of road improvements to Sunset Avenue, Lincoln Street, Bobcat Road, Highland Home Road, utility improvements for sewer, water, recycled water, storm drains as well as other public improvements.
3. Grant property for the Sun Lakes Boulevard extension.
4. Pay the City $5,100,000 towards the Sun Lakes Boulevard extension.
5. Grant the City at least 2 ½ acres for a fire station.
6. Grant the City approximately 2 acres for a water tank.
7. Grant the City property for a utility substation.
8. Grant the City property for a reverse osmosis facility.
9. Pay the City $10,000,000 for design and construction of an electrical substation.
10. Maintain all private roads, sidewalks, and landscape areas within and fronting the public right-of-way on the Property.
11. Grant the City approximately 52.8 acres as open space.
12. Grant the City approximately 12 acres for a park and construct and maintain the park facilities.
13. Pay the City $16,000,000 for a fire station and another $1,000,000 for fire equipment.
14. Pay the City $750,000 for downtown beautification or small business assistance.
15. Notification to City residents about job opportunities in the Project.
16. Pay the City $500,000 for an animal shelter.

The Owner may claim sales tax revenues generated by the industrial property as a credit against the Public Benefits of up to $2,000,000.

Summary:

A "Yes" vote by a majority of those voting on Measure W means Ordinance No. 1620 and the Development Agreement will become effective.

A "No" vote by a majority of those voting on Measure W means Ordinance No. 1620 and the Development Agreement will not become effective.

The above statement is the impartial analysis of Measure "W." If you desire a copy of the Ordinance or Measure, please call the City Election Official's Office at (951) 922-3102 and a copy will be mailed to you at no cost.

John O. Pinkney, City Attorney

ARGUMENT IN FAVOR OF MEASURE "W"

Vote YES on Measure W to move Sunset Crossroads forward and secure important commitments and benefits for Banning.

Yes on Measure W approves a development agreement between the City of Banning and the developer of Sunset Crossroads that imposes tough protections on the project. The agreement guarantees more than $40 million in public benefits for the City, along with land for parks and open space, a new fire station, public utilities, and other improvements for Banning residents.

Yes on W also generates nearly $3 million in **annual revenue** for the City to preserve basic public services and address the City's current financial challenges, including an **additional** $3 million upfront to support basic public services.

Sunset Crossroads represents nearly $1 billion in private investment in Banning and will create more than 3,700 permanent jobs while bringing new shopping and dining options to the city, including Sam's Club.

These investments and improvements will be provided at no cost to local taxpayers, allowing Banning to provide significant new benefits without placing the financial burden on residents.

Yes on Measure W moves Sunset Crossroads forward with guaranteed protections, millions of new revenues for Banning, and lasting benefits for residents.

Vote YES on Measure W to support Sunset Crossroads and invest in Banning's future.

By: Cindy Barrington,
Banning Mayor Pro Tem

Eric Campa,
President Banning Police Officers Association

Daniel Kitt,
6th District Vice President, CAL FIRE Local 2881 Riverside County Firefighters

Larry Smith,
President Inland Empire Taxpayers Association

Charles LaPorte,
Community Leader (Pastor)

REBUTTAL TO ARGUMENT IN FAVOR OF MEASURE "W"

Only You Can Protect Banning Against Mega-Warehouses

The devil is in the details. Here's what Measure W really does.

A Sales Pitch Isn't a Guarantee
The proponents make wild promises: more than $40 million, a new fire station, nearly $3 million a year, and "no cost" to taxpayers.

The developer's advertised benefits aren't guaranteed. They claim "no cost" to taxpayers, but you could pay with your health, safety, and welfare.

$40 Million Isn't a $40 Million Check
They count cash, payments, construction, credits, and reimbursements as more than $40 million. That's not a $40 million check to Banning. It's an estimate, not a guarantee.

The Fire Station Isn't Guaranteed
The agreement calls it a "possible future fire station," but says no need has been identified, no current plan exists, and the Banning City Council may use the money for something else.

"No Taxpayer Cost" Ignores the Fine Print
The City's analysis says Banning will spend $1.75 million every year providing services to the project once it's built. That's a recurring taxpayer expense.

The Developer Gets 30 Years. We Get Stuck.
Measure W protects the developer's rights for 30 years and limits changes by future City Councils.
The agreement doesn't guarantee a $1 billion investment, 3,700 jobs, or jobs for Banning residents.
The developer gets enforceable rights. Banning gets only "promises."

Only You Can Protect Banning Against Mega-Warehouses
Vote NO on U.
Vote NO on V.
Vote NO on W.

VoteNoOnUVW.com

By: Kathleen Dale,
Former Planning Commission Chair & District 1 Resident

Linda Pippenger,
Real Estate Broker, Stagecoach Days Treasurer & District 2 Resident

Sheri Flynn,
Banning Council Member, District 3

Valerie Hollingworth,
Realtor & District 4 Resident

Chris Castorena II,
Vietnam Veteran & District 5 Resident

ARGUMENT AGAINST MEASURE "W"

Vote No On Mega-Warehouses
Vote No On Measure W

Measure W is the developer deal that ties the mega-warehouse plan together.

It gives an out-of-state developer a 30-year deal for nearly 5 million square feet of mega-warehouses, while Banning families live with the consequences.

Read the deal itself.

It says the developer receives "substantial private benefits" and protection from "development risks and uncertainties."

And Banning? The agreement says it will "bind current and future Councils."

The Council protected the developer from risk. Who protected Banning families?

Four Councilmembers approved this 30-year deal without first protecting Banning from unwanted industrial uses, including data centers, detention centers and large battery energy storage facilities.

They approved the deal first. They talked about protections later.

No matter what the developer promises, promises don't change what the Council approved.

The world will change over the next 30 years. But Banning can't change this deal on its own.

Vote No On Mega-Warehouses
Vote No On Measure W

And what about the supposed benefits to Banning?

The developer gets its 30-year protection. Benefits promised to Banning are tied to conditions, future development and deadlines. Even the agreement calls the fire station a "possible future fire station."

A bad deal is a bad deal.

Banning can grow without mega-warehouses. We already had a plan for shopping, homes, parks and open space without nearly 5 million square feet of mega-warehouses.

Measures U, V and W are all part of the same mega-warehouse plan. Stopping it takes three NO votes.

Protect our families. Protect our neighborhoods. Protect Banning's future.

Vote No On Mega-Warehouses
Vote NO on U. Vote NO on V. Vote NO on W.

VoteNoOnUVW.com

By: Kathleen Dale,
Former Planning Commission Chair

Sheri Flynn,
Banning City Council Member

Gerry Cousins Phelps,
Former Planning Commissioner

John Hagen,
Retired Deputy Sheriff

Peter Fernandez,
Retired Principal

REBUTTAL TO ARGUMENT AGAINST MEASURE "W"

Vote **YES on Measure W** to guarantee – in writing – that the Sunset Crossroads project delivers its many important benefits to Banning residents.

By voting **YES on Measure W**, the benefits promised by Sunset Crossroads become legally binding commitments in favor of Banning residents.

Under California law, the development agreement gives Banning the power to enforce those commitments.

Opponents call the fire station "possible," but omit the most important fact: Sunset Crossroads must pay Banning $16 million whether the City decides to build the station or not. If it isn't built, Banning keeps every dollar for other public purposes. Measure W lets the City decide.

And fire station funding is just one of Sunset Crossroads' guaranteed commitments to Banning. Measure W also guarantees $1 million for fire equipment, $750,000 for downtown beautification, $500,000 for an animal shelter, and gifted land to the City for a fire station, water tank, and electrical substation.

Opponents ask, "Who protected Banning families?" Sunset Crossroads does.

At a time when Banning has declared a fiscal emergency and faces a significant budget deficit, Sunset Crossroads will generate approximately $44 million in new City revenue, including nearly $3 million annually, helping address the deficit and fund essential City services residents rely on.

Sunset Crossroads will also bring 3,700+ permanent jobs, parks and open space, and new shopping and dining, including Sam's Club.

Vote YES on Measure W.

By: Cindy Barrington,
Banning Mayor Pro Tem

Eric Campa,
President, Banning Police Officers Association

Daniel Kitt,
6th District Vice President, CAL FIRE Local 2881 – Riverside County Firefighters

Larry Smith,
President, Inland Empire Taxpayers Association

Charles LaPorte,
Banning Community Pastor